

Motion to Be Relieved as Counsel.

3. 9:00 AM CASE NUMBER: C25-02439
CASE NAME: CHANEL READER-JONES VS. MARJORIE RINKER
***CASE MANAGEMENT CONFERENCE**
FILED BY:
TENTATIVE RULING:

The Court **continues** the case management conference to April 30, 2026.

4. 9:05 AM CASE NUMBER: C25-02637
CASE NAME: ROBIN FERNANDEZ VS. VEG SAN RAMON, LLC,
***HEARING ON MOTION IN RE: STRIKE PLTFS COMPLAINT**
FILED BY: VEG SAN RAMON, LLC,
TENTATIVE RULING:

Plaintiff Robin Fernandez brought this action against VEG San Ramon LLC DBA Veterinary Emergency Group San Ramon and Tyra Eggert for (1) veterinary professional negligence, (2) intentional infliction of emotional distress, (3) fraud and deceit, (4) conversion (trespass to chattels), (5) violation of consumer legal remedies act, and (6) unfair business practices. She seeks economic, emotional distress, punitive, exemplary, and compensatory damages, as well as restitution, injunctive relief, attorneys' fees, and the peculiar economic value of her deceased pet. By this motion, Defendants seek to strike from Plaintiff's complaint the requests for emotional distress, punitive, exemplary, and compensatory damages (as to the Sixth Cause of Action), as well as restitution, injunctive relief and the peculiar economic value of the pet. Defendants were unable to meet and confer with Plaintiff despite efforts to do so, and approximately one month after the filing of this Motion, Plaintiff's counsel filed a request to be relieved as counsel—that hearing is set for May 14, 2026. The Court received no opposition to this Motion, but did receive a notice that current Plaintiff's counsel will be appearing remotely.

Analysis

Emotional Distress Damages

Plaintiff cannot recover emotional distress damages for veterinary malpractice. (*McMahon v. Craig* (2009) 176 Cal.App.4th 1502, 1514-1515.) There is nothing in the complaint supporting any extension of these tort damages to this matter. This claim will therefore be stricken.

Punitive Damages

A claim for punitive damages must be supported by specific factual allegations. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Civil Code section 3294, subdivision (a) provides: "In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." Plaintiff has included no allegations of oppressive, fraudulent, or malicious conduct. This

claim will therefore be stricken.

Exemplary Damages

California Civil Code § 3340 allows for exemplary damages for wrongful injuries to animals that are committed willfully or by gross negligence, in disregard of humanity. Plaintiff has included no such damages. This claim will therefore be stricken.

Restitution and Injunctive Relief

"[T]here is no right to equitable relief or an equitable remedy when there is an adequate remedy at law." (*Martin v. County of Los Angeles* (1996) 51 Cal.App.4th 688, 696.) Aside from seeking a refund of amounts paid—which is also the compensatory damages sought—Plaintiff has presented no support for injunctive relief or restitution (except as to the Sixth Cause of Action, if it survives demurrer). The lack of specificity as to what the injunctive relief could possibly be in this matter demonstrates that the pleading is insufficient to support such a claim. These claims will therefore be stricken from all but the Sixth Cause of Action, if it survives demurrer.

Compensatory Damages Under the Unfair Competition Law (UCL) – Sixth Cause of Action

A UCL action is equitable in nature; damages cannot be recovered. (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1144.) This claim will therefore be stricken.

Peculiar Damages

Peculiar value under Civil Code section 3355 refers to a property's unique economic value, not its sentimental or emotional value. . . . "[P]eculiar value" . . . refer[s] to special characteristics, which increase the animal's monetary value, not its abstract value as a companion to its owner. (*McMahon*, supra, 176 Cal.App.4th at 1518.) As *McMahon* explains, "We recognize the love and loyalty a dog provides creates a strong emotional bond between an owner and his or her dog. But given California law does not allow parents to recover for the loss of companionship of their children, we are constrained not to allow a pet owner to recover for loss of the companionship of a pet. (*Id.* at 1519-1520.) This claim will therefore be stricken.

Ruling

Defendants' Motion is therefore **granted** except to the extent the Sixth Cause of Action survives demurrer, in which case a claim for restitution remains.

Law & Motion

5. 9:00 AM CASE NUMBER: C22-02652
CASE NAME: HONAKER VS. CHP OFFICER DONNIE THOMAS
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: CHP OFFICER DONNIE THOMAS
TENTATIVE RULING: